



सत्यमेव जयते

भारतीय राष्ट्रीय राजमार्ग प्राधिकरण

(सड़क परिवहन और राजमार्ग मंत्रालय, भारत सरकार)

National Highways Authority of India

(Ministry of Road Transport and Highways, Government of India)

जी-5 एवं 6, सेक्टर-10, द्वारका, नई दिल्ली - 110 075 • G-5 & 6, Sector-10, Dwarka, New Delhi-110075

दूरभाष/Phone : 91-11-25074100 / 25074200



Without Prejudice

Order of Debarment and Penalty

Report regarding falling of PSC Girder on construction zone of 6-lane stand alone flyover at Baihata junction / E-file 241967/ 77

Dated: 09.06.2025

To,

Sh. Mukesh Kumar

The Assistant Bridge Engineer,

M/s TPF Engineering Pvt. Ltd. in association with MAV Associates LLP.

Flat No. 1C, Phalguni Apartment, Patharkuchi road, Lane no. 37,

Rajiv Gandhi Path Udaynagar, Kainadhara, P.O. Khanapara,

Guwahati, Assam, Pin-781022

Sub.: Consultancy Services for Authority's Engineer for Supervision of Construction of Standalone Flyovers and ROB on stretches of NH-31 and NH-31C, NH-36 & NH 37 in the state of Assam under Bharatmala Pariyojana (Package -1 and Package -2) Flyover (at Bongaigaon, Chapaguri, Pathsala, Simlaguri Chowk and Baihata Junctions)-
Debarment Order -Regd.

Ref:	i.	Consultancy Contract Agreement dated 23.12.2022
	ii.	EPC Contract Agreement dated 25 th November, 2022
	iii.	RO-Guwahati Letter No.-NHAI/RO/GHY/2022/Flyover & ROB/Pkg-1/26018 Dated: 02.03.2024
	iv.	PIU-Bongaigaon Letter No.-NHAI/PIU/BON/2022/TPF Engg./Pt.-IV/03/23780 Dated: 02.03.2024
	v.	Consultant's Letter No. TPFMAV/NH-27EW/SBIPL/2023-24/Feb./449 Dated: 28.02.2024
	vi.	NHAI Policy Guidelines No. 18.63/2021 Dated: 08.01.2021 (E-52082) (SOP)
	vii.	PIU-Bongaigaon letter no. NHAI/PIU/BON/2016/Road Safety/Pt.-XII/05/22953 Dated: 15.06.2023
	viii.	PIU-Bongaigaon letter no. NHAI/PIU/BON/2016/Road Safety/Pt.-XI/09/22893 Dated: 16.05.2023
	ix.	PIU-Bongaigaon letter no. NHAI/PIU/BON/2022/TPF Engg./Pt.-II/05/23353 Dated: 18.10.2023
	x.	PIU-Bongaigaon letter no. NHAI/PIU/BON/2022/Shiv Build India (NBIL)/Pt.-I/14/22818 Dated: 04.04.2023
	xi.	PIU-Bongaigaon letter no. NHAI/PIU/BON/2016/Road Safety/Pt.-XX/19/23509 Dated: 26.12.2023
	xii.	PIU-Bongaigaon letter no. NHAI/PIU/BON/2022/TPF Engg/15/22853 Dated: 25.04.2023
	xiii.	NHAI Letter dated 20.01.2025
	xiv.	Your letter dated 04.02.2025

Sir,

This is with reference to the Consultancy Contract Agreement signed between the National Highways Authority of India ("NHAI" or "Authority") and M/s TPF

Engineering Pvt. Ltd. in association with MAV Associates LLP (“Consultant”) for the Consultancy Services for Authority Engineer for Supervision of “Construction of 6 lane standalone flyovers at Bongaigaon, Chapaguri, Pathsala, Simlaguri Chowk and Baihata Junctions on stretches of NH-31 and NH-31C in the state of Assam under Bharatmala Pariyojana on EPC basis” referred at Sl no. (i) above.

2. Standalone flyover at various locations are being constructed under the jurisdiction of NHAI, PIU-Bongaigaon by M/s Shiv Buildindia Pvt. Ltd. under the supervision of the Authority Engineer M/s TPF Engineering Pvt. Ltd. in association with MAV Associates LLP. An unfortunate incident occurred at Baihata location on NH-27 (Old NH-31) wherein a girder fell on in the morning on 28.02.2024 causing a casualty of a local vendor at the construction site. The occurrence of a casualty at the site is an extremely serious safety lapse and should have been avoided in all circumstances. Such an accident has taken place despite that the issue of safety at work zone has been raised time and again and the Authority Engineer & the Contractor were reminded/requested to comply with the directions issued vide letters under reference at Sl no.(vii), (viii), (ix), (x) & (xi).

3. The Team Leader M/S TPF Engineering Pvt. Ltd vide letter under reference (iv), has submitted that “it was preliminary reported that the incident has happened around 8.30 am while the lifting crane was unlocked from PSC Girder after placement of the said PSC Girder at Baihata.” It has also been submitted that the launching activity was done by the EPC Contractor in the absence of any concerned representative of AE.

4. It is to note that the above submission does not seem to be a factual report as on the place of incident, no crane has been seen and only one excavator and a damaged tipper existed and it is understood that launching of the said girder has already taken place before 28.02.2024 i.e. the date of incident. Further, as per report of PD, PIU Bongaigaon vide letter under reference at sl. (iii), the submission by the Team Leader cum Senior Bridge Engineer has been stated to be “not correct.”

5. In this regard, your kind attention is also invited to Enclosure B in the Terms of Reference in the Consultancy Agreement, wherein it is, *inter alia*, stated that the bridge and structural engineer has to supervise the works of bridges, interchanges and any other structure to be constructed. However, the occurrence of aforesaid accident shows that you have failed to discharge your duties, including as mentioned above, under the Consultancy Agreement.

6. The above defaults lead to the non-fulfillment Contractual Obligations under clauses 11.17, 18.2 of EPC Agreement, clauses 3(i), 4(i), 4(iv), 4(vii), 4(xvi) of Schedule-N of EPC agreement and Clauses 5.1, 5.3, 5.6, 5.8, 5.14, 5.17, 6.3.4, 6.6 (9.2) & 11 of the Terms of Reference (“TOR”) of Consultancy Agreement.

7. As per consultancy Contract Agreement Clause 3.1.3 “Penal actions in case of lapses of Authority's Engineer and concerned key personnel on their part/deficiencies in services provided” which states that “In case of lapses on their

part/deficiencies in services provided under this contract, the penal actions against Authority's Engineer and concerned key personnel, shall be taken as per Appendix 'N' of RFP.

8. In view of the above facts and circumstances, Show Cause Notice was issued vide NHAI letter dated 20.01.2025 to the Assistant Bridge Engineer, M/s TPF Engineering Pvt. Ltd. in association with MAV Associates LLP to show cause as to why an appropriate action of debarment for a period of 02 years from working in NHAI works should not be taken against you/ Assistant Bridge Engineer in terms of the NHAI Policy Guidelines No. 18.63/2021 Dated: 08.01.2021 Sr. No. (iii) referred at Sl No.(v) above read with Clause 3.1.3 of the General Conditions of the Contract (GC) of the Consultancy Agreement.

9. You vide letter dated 04.02.2025 had submitted the reply to the said Show Cause Notice. The Authority has carefully examined the contents of the your aforesaid responses and found that the same to be as vague, unsubstantiated and misconstrued, hence, the content of letters dated 04.02.2025 are misplaced and do not warrant any relaxation and hence denied in its entirety.

10. Leaving aside the design and quality related issues, the reply furnished You with respect to the reasons leadings to collapse of the girders and death of one road user is not tenable and do not justify the actions of the Assistant Bridge Engineer thereof.

11. In view of the abovementioned facts and circumstances, Sh. Mukesh Kumar, is hereby debarred from participating in any projects in NHAI/NHIDCL/NH and all Divisions/Units of MoRT&H for a period of 02 years commencing from 09.06.2025 till the end of 09.06.2027 (inclusive of both the days) for gross negligence in execution of the Project Highway as detailed hereinabove. Brief of Key Professional is as under:

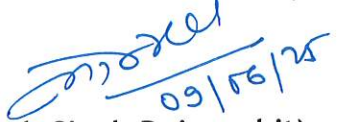
Name of Key personnel	Date of Birth	PAN	Infracon/Email ID	Mobile no.
Mr. Mukesh Kumar	12.05.1990	KBMPK7144G	mukeshkumarsrimt@gmail.com	7800219754

12. This notice is being issued without prejudice to the Authority's other rights/remedies available now or in future under the Agreement and/or the applicable laws of India. By issuance of this notice, NHAI should not be deemed to have varied, waived, surrendered or abrogated any of its legal and contractual rights in any manner whatsoever.



13. This Notice is issued with the approval of the Competent Authority of NHAI.

Yours Sincerely


(Lokesh Singh Rajpurohit)
General Manager (Tech.)
North-East Division
National Highways Authority of India

Copy to:

- I. DG (RD & SS), Ministry of Road Transport & Highways.
- II. CVO, All ROS/CGMs/GMs/PDS/DGMs/Managers / Dy. Managers
- III. NHAI (Through Web Admin).
- IV. NHIDCL, HQ, New Delhi.